

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Craig Anderson	Team: Squad #07	CCRB Case #: 201500681	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 01/25/2015 11:10 PM	Location of Incident: Flatlands Avenue between Utica Avenue and East 51st Street	18 Mo. SOL 7/25/2016	Precinct: 63		
Date/Time CV Reported Wed, 01/28/2015 7:53 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 01/30/2015 7:53 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Pawel Dabrowski	03056	948841	063 PCT
2. POM Jordan Lomba	09300	950766	063 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Guillerm Moncada	4903	919426	063 PCT
2. POM Kristo Cevi	16538	952569	063 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jordan Lomba	Abuse: PO Jordan Lomba stopped the car in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . POM Pawel Dabrowski	Abuse: PO Pawel Dabrowski stopped the car in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . POM Pawel Dabrowski	Abuse: PO Pawel Dabrowski threatened to arrest § 87(2)(b)	C . Exonerated
D . POM Jordan Lomba	Abuse: PO Jordan Lomba threatened to arrest § 87(2)(b)	D . Exonerated
E . POM Jordan Lomba	Discourtesy: PO Jordan Lomba spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . POM Pawel Dabrowski	Abuse: PO Pawel Dabrowski issued a summons to § 87(2)(b)	F . Substantiated

Case Summary

On January 25, 2015 at approximately 11:10 p.m., PO Pawel Dabrowski and PO Jordan Lomba stopped § 87(2)(b)'s car on Flatlands Avenue between Utica Avenue and East 51st Street in Brooklyn (**Allegations A and B**). The officers stated in their interviews that § 87(2)(b) was speeding; § 87(2)(b) denied this. PO Dabrowski asked § 87(2)(b) to provide his driver's license several times. § 87(2)(b) did not comply until the officers told him he would be arrested if he did not provide the license (**Allegations C and D**). PO Lomba allegedly said "Give us your fucking license before I fucking lock you up. You don't fucking call the shots here, we fucking do, now give me your fucking license" (**Allegation E**). § 87(2)(b) called 911, and Sgt. Guillermo Moncada responded to the scene with his operator, PO Kristo Cevi. PO Dabrowski issued § 87(2)(b) a summons for disorderly conduct, which § 87(2)(b) believed was in retaliation for him calling 911 (**Allegation F**).

Mediation, Civil, and Criminal Histories

§ 87(2)(b) rejected mediation. As of March 25, 2015, an inquiry with the Comptroller's office about any notice of claim filed in relation to this incident is still pending. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(g)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 5A).
- PO Dabrowski has been a member of the NYPD for four years. He had one prior allegation of force against him, which was unsubstantiated (encl. 3A). § 87(2)(g)
- PO Lomba has been a member of the NYPD for four years. He had two prior complaints against him: one was unsubstantiated, and the other was closed as victim uncooperative (encl. 4A). PO Lomba has one other open CCRB complaint that also involves a vehicle stop allegation.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) alleged that only PO Lomba threatened to arrest him. In their CCRB interviews, however, both PO Lomba and PO Dabrowski acknowledged that they threatened to arrest § 87(2)(b).

§ 87(2)(b) § 87(2)(g)

Recommendations

Allegation A – PO Jordan Lomba stopped the car in which § 87(2)(b) was an occupant.

Allegation B – PO Pawel Dabrowski stopped the car in which § 87(2)(b) was an occupant.

According to both § 87(2)(b) and the officers, the speed limit at the location of the vehicle stop was 25 miles per hour. § 87(2)(b) stated that he was travelling at less than this speed (encl. 11D-E). PO Lomba and PO Dabrowski both stated that § 87(2)(b) was travelling at 35 miles per hour (encl. 15C and 19C). They determined this by following behind § 87(2)(b) and pacing him.

Neither officer issued § 87(2)(b) a summons for speeding. Officers may use their discretion when deciding whether to issue summonses. § 87(2)(g)

It is therefore recommended that **allegations A and B be unsubstantiated.**

Allegation C – PO Pawel Dabrowski threatened to arrest § 87(2)(b)

Allegation D – PO Jordan Lomba threatened to arrest § 87(2)(b)

It is undisputed that the officers threatened to arrest § 87(2)(b) after he did not comply with several requests to provide his license. § 87(2)(b) and PO Lomba estimated that § 87(2)(b) argued with the officers for approximately one minute before providing his license. PO Dabrowski estimated that he argued for about five minutes before providing it.

If officers cannot determine the identity of a motorist during a vehicle stop, they must remove the driver to their command for investigation. Patrol Guide, Section 209-09 (encl. 1B).

§ 87(2)(g)

it is recommended that **allegations C and D be exonerated.**

Allegation E – PO Jordan Lomba spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that, after he argued with PO Dabrowski about providing his license, PO Lomba tapped on his passenger's side window and said, "Give us your fucking license before I fucking lock you up. You don't fucking call the shots here, we fucking do, now give me your fucking license." PO Lomba denied using any obscenities toward § 87(2)(b) and PO Dabrowski denied hearing PO Lomba use obscenities. No obscenities are audible in the 911 call, although the call only recorded the end of § 87(2)(b)'s interaction with PO Lomba and PO Dabrowski (encl. 9A).

§ 87(2)(g)

it is recommended that **allegation E be unsubstantiated.**

Allegation F – PO Pawel Dabrowski issued a summons to § 87(2)(b)

PO Dabrowski issued § 87(2)(b) a summons for disorderly conduct, under the subsection "creating a hazardous condition" (encl. 16A). § 87(2)(b) denied creating any hazardous condition, and said that the summons was issued in retaliation for his call to 911.

During his interview, PO Dabrowski confirmed that issuing the disorderly conduct summons was his own decision, and Sgt. Moncada did not tell him to issue it. He said that the "hazardous condition" referred to a crowd of about ten people who gathered on the sidewalk about "two car-lengths" away from the officers to watch the vehicle stop. The crowd did not attempt to become physically involved in the stop, but they made several statements that PO Dabrowski could not recall. The crowd made PO Dabrowski concerned for his safety.

PO Lomba did not know the charge on the summons issued by his partner. When asked if he was aware of any hazardous conditions created during the stop, PO Lomba said that PO Dabrowski had to stand in traffic for a long time. PO Lomba did not mention the presence of a crowd until he was directly asked if a crowd gathered. He said there were about three people standing on the sidewalk, but could not estimate how far away they were. Those people made no attempt to get involved in the stop, and § 87(2)(b) did not talk to them.

The “Factual Allegations” section of the summons states that PO Dabrowski observed § 87(2)(b) “creating (a) hazardous condition while upon car stop he refused numerous requests to provide identification and presenting violent (and) threatening behavior.” § 87(2)(b) statements are written as “I’m not giving you anything I ain’t do nothing” (encl. 16A).

Under the disorderly conduct subsection indicated on § 87(2)(b) s summons, a person would be guilty if, “with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof,” the violator “creates a hazardous or physically offensive condition by any act which serves no legitimate purpose.” N.Y.S. Penal Law, Section 240.20 (encl. 2A). Verbally expressing that “one feels aggrieved by the police” does not constitute an offense, even if said loudly. People v. Square, 872 N.Y.S.2d 575 (2008 – Crim. Ct. NY County) (encl. 2B-D).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(b) acknowledged that he repeatedly refused requests to provide his identification. PO Dabrowski also said that § 87(2)(b) called him a “racist” and angrily disputed the reason for the stop. § 87(2)(g)

§ 87(2)(b) The recording of the 911 call shows that § 87(2)(b) was highly emotional and somewhat irrational during the stop (encl. 9A). For example, he repeatedly begged the 911 operator and the IAB officer that he was later connected with to stay on the phone because he was afraid for his life. When the IAB officer said he would hang up and call back in twenty minutes, § 87(2)(b) said “In twenty minutes I might be dead.” In the police radio recording, too, the conditions officer who spoke – either PO Dabrowski or PO

Lomba – sounded irritated when he realized that the radio run regarding a request for assistance at the stop location referred to his own car stop (encl. 20A).

§ 87(2)(g)

It is therefore recommended that **allegation F be substantiated.**

Pod: 7

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date